State vs Ashu Singh on 26 December, 2025

IN THE COURT OF MS. GEETANJALI
ADDITIONAL SESSIONS JUDGE (FTC)- 03; SOUTH EAST
DISTRICT SAKET COURTS: NEW DELHI

S.C. NO. : 210/2020
FIR NO. : 204/2013
PS : OKHLA INDUSTRIAL AREA
U/S. : U/S.307/34 IPC
CNR : DLSE01-003648-2020

THE STATE

VERSUS

1. ASHU SINGH
S/O SH. VIKRAM SINGH
R/O B-166, NAVJEEVAN CAMP,
GOVINDPURI, NEW DELHI.

2. SHER SINGH
S/O BIRI SINGH
R/O 625, BLOCK-B, NAVJEEVAN CAMP,
GOVINDPURI, NEW DELHI.

... ACCUSED PERSONS

DATE OF INSTITUTION : 08.10.2020
ORDER RESERVED ON : 11.12.2025
ORDER DELIVERED ON : 26.12.2025

GEETANJALI Digitally signed by GEETANJALI Date: 2025.12.26 15:52:26 +0530

JUDGMENT

1. The accused persons namely Ashu Singh and Sher Singh are facing trial for the offences punishable u/s 307/34 IPC.

BRIEF FACTS

2. The case of the Prosecution is that on 18.04.2013 on the receipt of DD no. 22A SI Jagbir Singh along with Ct. Jitender reached at the spot i.e. A-1/1, OIA, New Delhi where they came to know that injured was already taken to ESI Hospital by the PCR. Accordingly, ASI Jagbir and Ct. Jitender went to ESI Hospital and obtained the MLC of injured namely Shri Sunil Kumar as per which patient was

fit for statement. ASI Jagbir recorded the statement of Sunil Kumar who stated that "he works in a company situated at A-1/1, OIA, New Delhi and in the evening at about 7.00 p.m. when he was returning home after his duty hours and came out of the gate of the company, he saw two boys namely Ashu Singh and Sher Singh quarreling with Harish Bisht and both the said boys work in his company only; that when he tried to intervene, Ashu caught hold of him from his front and Sher Singh attacked him with some sharp object; that after seeing the gathering of public persons at spot both the said boys fled away from there; that the supervisor of the company namely Vipin Kumar called at 100 number and he was taken to ESI hospital by the PCR. "

> On the basis of said statement the FIR was registered. After completing other necessary formalities charge-sheet was filed against the accused persons u/s. 326/34 IPC. Digitally signed by GEETANJALI GEETANJALI Date:
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> 2025.12.26 15:52:35 +0530 FIR NO.: 204/2013, PS. O.I.A. S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 2 of 31

3. On the basis of charge-sheet so submitted before Ld. Metropolitan Magistrate, cognizance was taken by the Ld. Metropolitan Magistrate u/s. 326/34 IPC. After compliance with the provisions of Section 207 Cr.PC charge u/s. 326/34 IPC was framed against the accused persons and the matter was fixed for prosecution evidence. During course of trial an application u/s. 323 Cr.PC was moved on behalf of the State and finding the prima facie ingredients for the offence u/s. 307 IPC, the matter was committed to the Court of Sessions and was assigned to this Court.

CHARGE

4. After hearing arguments on point of charge and finding a prima facie case requisite charges U/s.307/34 IPC was framed against accused Ashu Singh and Sher Singh to which they pleaded not guilty and claimed trial.

PROSECUTION EVIDENCE

5. In support of its case, the prosecution has examined as many as eight witnesses.

5.1 PW-1 Sh. Sunil Kumar is the complainant/injured in the present case. His testimony in detail shall be discussed in the later part of judgment.

5.2 PW-2 Sh. Vipin Kumar is the public witness in the present case. His testimony in detail shall be discussed in the later part of judgment.

5.3 PW-3 Dr. Nasim Alam, Casualty Medical Officer has deposed that "he has been working in ESIC Hospital, Okhla from 2009 till 2014; that on 18.04.2013 he had examined injured Sunil and Digitally signed by GEETANJALI GEETANJALI Date:

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> S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 3 of 31 15:52:46

thereafter he had prepared MLC no. 52/13; that the MLC is now exhibited as PW3/A; that the patient was referred to DOD surgery; that as per the MLC, the nature of injuries sustained by the injured Sunil is grievous in nature". He was cross examined by Ld. defence counsel.

5.4 PW-4 Retd. SI Jagbir Singh is the first investigating officer of the case. His testimony in detail shall be discussed in the later part of judgment.

5.5 PW-5 Retd. SI Prem Pal is the police witness and he has deposed that "on 02.07.2013 he was posted as ASI at PS OIA; that on that day investigation of the present case was marked to him; that as per the case file Section 326 IPC was added against accused persons; that accused persons had already obtained anticipatory bail hence he formally arrested accused persons namely Ashu Singh and Sher Singh vide arrest memos vide Ex. PW5/A and Ex. PW5/B and they were released as per conditions on anticipatory bail; that he recorded the statement of Ct. Ajay who assisted him during the investigation; that thereafter he prepared the charge-sheet and filed the same before the Hon'ble Court". He was cross examined by Ld. defence counsel. 5.6 PW-6 ASI Ajay Kumar is the police witness and he has deposed that "on 20.07.2014 he was posted as constable at PS OIA; that on that day IO/ ASI Prem Pal arrested the accused persons namely Sher Singh and Ashu Singh in his presence in the PS by way of arrest memo Ex. PW5/A and Ex. PW5/B and Ex. PW6/A and Ex.

Digitally PW6/B". He was cross examined by Ld. defence counsel. signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 15:52:54 +0530 FIR NO.: 204/2013, PS. O.I.A. S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 4 of 31 5.7 PW-7 Dr. Ambrish Shrivastava, IMO, ESI Okhla has deposed that "he is working as a IMO in the ESI Hospital since the year 2019; that he has been deputed by Medical Superintendent by way of authority letter which is Ex. PW7/A to give opinion on the MLC prepared by Dr. Jagdish the then Sr. Resident in this case who has now left the services of ESI Hospital and his present whereabouts is not available with the said ESI hospital; that at this stage MLC of the injured Sh. Sunil already Ex. PW3/A is shown to the witness and after seeing the same witness deposed about the injury of the injured as follows:
>
> (i) One oblique stab wound right side posterior chest wall over scapular region measuring 6X2.5 Cms. Stab is muscle deep.
>
> (ii) Another stab wound 2X0.5 Cms. over first one, one inch above previous one.
>
> (iii) Stab wound 1X0.5 Cms. over right side of chest wall.
>
> (iv) Two small puncture wounds over anterior chest wall.
>
> (v) Surgical emphysema (mild) over right side chest wall.

5.7.1 He has further deposed that "On the basis of aforesaid injuries mentioned in the MLC Ex. PW3/A it is opined that the nature of injuries of the injured is dangerous to life and grievous in nature; that it is further opined that aforesaid injuries would have been caused by sharp weapon". He was cross examined by Ld. defence counsel. 5.8 PW-8 Dr. Bhaskar Saxena, Jr. Resident-III, General Surgery has deposed that "he has worked as Medical Officer at ESIC hospital, Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 15:53:03 FIR NO.: 204/2013, PS. O.I.A. +0530 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 5 of 31 Okhla, New Delhi with effect from 12.09.2009 to 15.11.2022; that thereafter he had obtained study leave for pursuing post graduation course at ESIC Model hospital, Jaipur, Rajasthan; that he can identify the signature and handwriting of Dr. Jagdish Mutreja the then Sr. Resident of ESIC hospital, Okhla, New Delhi as he had worked with him and he has seen his signature and handwriting during the course of his duty; that at this stage MLC of injured Ex. PW9/A is shown to the witness; that after seeing the same witness has correctly identified the signature and handwriting of Dr. Jagdish Mutreja at point A and handwriting encircled as C in the MLC Ex. PW9/A; that on perusal of the injury of the injured Sunil mentioned in his MLC it can be said that injured Sunil has sustained multiple stab injuries on his right side chest and as per his opinion and expertise the injuries are dangerous in nature; that as per the MLC the injured Sunil was referred to the Safdarjung hospital for further treatment and analysis ". He was cross examined by the Ld. defence counsel.
>
> STATEMENT OF ACCUSED

6. After completion of prosecution evidence, statement of accused persons namely Ashu Singh and Sher Singh were recorded wherein they denied the allegations against them and stated that they are innocent and were falsely implicated in the present case by the complainant in connivance with the IO; that they have no dispute with the complainant and do not know how come the present FIR was registered against them. Though, the accused persons took the plea of being innocent in their statements under section. 313 Cr.P.C. but preferred not to lead any defence evidence and matter was fixed for GEETANJALI Date:

> FIR NO.: 204/2013, PS. O.I.A. 15:53:10 +0530 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 6 of 31 final arguments.
>
> ARGUMENTS

7. Ld. Addl.P.P. has argued that PW-1 Shri Sunil Kumar has fully supported the case of the Prosecution, explained the specific role of each accused person and manner of causing injuries to him; that medical evidences have also supported the version of the Prosecution and the nature of injuries suffered by PW-1; that injuries were caused at the vital part of the body of PW-1 with sharp edged weapon which itself is sufficient for punishment u/s. 307 IPC; that motive was also explained by PW-1 as to why accused persons assaulted him and inflicted injuries upon him; that no

contradictions or omissions have been duly established by the Ld. defence counsel which may cast doubt on the case of the Prosecution; that it is also settled principle of law that non-recovery of weapon does not diminish the case of the Prosecution. In view of the same it is prayed before this Court that accused persons may be convicted for the offences charge against them.

7.1 Per contra, it was argued by Ld. Counsel for the accused persons that the quarrel actually took place between one employee namely Anjani who has not been cited as witness in the present case; that there was no argument or quarrel took place between the accused persons and the complainant; that the other public witness i.e. PW-2 Shri Vipin turned hostile and did not support the case of the Prosecution; that PW-2 deposed that he did not see the accused persons at the spot; that as per MLC injuries suffered by the complainant i.e. PW-1 Shri Sunil were old injuries which also cast Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 FIR NO.: 204/2013, PS. O.I.A. 15:53:17 +0530 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 7 of 31 doubt on the Prosecution story; that no CCTV footage was placed on record by the Prosecution to substantiate the factum of quarrel between the accused persons and the complainant; that no other public witness was examined by the IO despite the fact that PW-1 has clearly deposed that several other public persons were also present at the time of incident; that no medical record of Safdarjung Hospital qua the treatment of the complainant was placed on record; that it was deposed by the PW-1 that accused persons came along with many other persons however no investigation qua them was carried out by the IO; that accused persons have been falsely implicated in the present case; that the case of the prosecution has not been established against accused persons beyond reasonable doubt. In view of the same, it has been prayed that both accused persons be acquitted of the offences charged.

8. I have heard the Ld. Addl. PP for the State as well as Ld. Counsels for the accused persons and perused the record.

ANALYSIS OF EVIDENCE AND FINDINGS

9. The accused persons are facing trial for the offence U/s. 307/34 IPC deals with attempt to murder. It states that "Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and if hurt is caused to any person by such act, the offender shall be liable either to imprisonment for life, or to such punishment as is hereinbefore mentioned".

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9.1 The essential ingredients required to be proved in the case of an offence u/s. 307 IPC are:-

(i) that the death of a human being was attempted;

(ii) that such death was attempted to be caused by or in consequence of the act of the accused;

(iii) that such act was done with the intention of causing death or that it was done with the intention of causing such bodily injury as (a) the accused knew to be likely to cause death; or (b) was sufficient in the ordinary course of nature to cause death or that the accused attempted to cause death by doing an act known to him to be so imminently dangerous that it must in all probability cause (a) death or

(b) such bodily injury as is likely to cause death, the accused having no excuse for incurring the risk of causing such death or injury.

10. The charge framed against the accused persons is that accused Ashu Singh caught hold of complainant/injured Sunil Kumar and accused Sher Singh stabbed him with knife and caused multiple injuries on his right side chest with such intention and under such circumstance that if they caused his death, they both will be guilty of murder. In order to prove its case, the Prosecution has examined injured/ complainant Sh. Sunil Kumar and eye witness Sh. Vipin Kumar.

10.1 It is well settled law that while appreciating the evidence of witness, the approach must be whether the evidence of a witness read as a whole appears to have a ring of truth. Once that impression is found, it is undoubtedly necessary for the Court to scrutinize the Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 15:53:33 FIR NO.: 204/2013, PS. O.I.A. +0530 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 9 of 31 evidence more particularly keeping in view the deficiencies, draw backs and infirmities pointed out in the evidence as a whole and evaluate them to find out whether it is against the general tenor of the evidence. Minor discrepancies on trivial matters not touching the core of the case, hyper technical approach by taking sentences torn out of context here or there from the evidence, attaching importance to some technical error committed by the investigating officer not going to the root of the matter should not ordinarily permit rejection of the evidence as a whole (Reliance placed on the judgment of Hon'ble Supreme Court of India in State of UP vs Krishna Master & Ors, decided on 03/08/2010 in Cr Appeal No. 1180/2004).
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> Ocular Evidence

11. I now proceed to analyse the testimony of eye witness/injured in the present case. Sh. Sunil Kumar is the complainant and star witness of the case and he has been examined as PW-1. He has deposed that "he was working in ERD Technologies Company (packing department) at A-1/1, Okhla

Phase I, New Delhi as a helper; that on 17.04.2013 accused Sher Singh who was working in the above said company but other department i.e battery department with him went to washroom and he started verbal arguments with Anjani in another department; that however the same was took place in the premises of the above said ERD Technologies Company; that Anjani was working in other department i.e. Charger Department in the same company; that thereafter at about 04:45 PM accused Sher Singh reached their department i.e. packing department by abusing Anjani; that thereafter he asked the accused Sher Singh as to why he was Digitally signed by GEETANJALI GEETANJALI Date:

abusing Anjani however he did not reply; that thereafter he along with other workers went for tea to the canteen which is outside the department of packing as it was tea break time; that at the canteen accused Sher Singh tried to manhandle with Anjani however they intervene between them and matter resolved there; that thereafter he along with other workers went to their respective department after taking tea; that in the meanwhile supervisor Vipin came to their department i.e. packing department; that packing department and battery department was in the one room and in different sections; that Supervisor Vipin asked accused Sher Singh as to why he was quarreling with Anjani to which accused Sher Singh replied the supervisor about the incident; that one Harish Singh Bhisht who was also working in battery department and sitting there; that accused Sher Singh told to Harish Singh that "tu jyada nain-mataka mat kar, Vipin ke sath"; that thereafter supervisor Vipin left the spot; that at about 07:00 PM their duty time was off (hamari chuti ho gayi); that he along with other workers came out the above said premises of the company; that accused Sher Singh asked to Harish Singh that "tu bol, tab kya bol ra tha"; that thereafter both of them scuffling each other; that he tried to intervene/separate them; that thereafter both of them left away from spot; that on next day i.e. on 18.04.2013 accused Sher Singh did not come to office; that his brother accused Ashu who was also working in Battery department in the same company did not join the duty; that he tried to inquire from the staff why the accused persons did not turn up; that on that day at about 07:00 PM accused Sher Singh and Ashu reached outside the company premises along Digitally signed by GEETANJALI GEETANJALI Date:

with 20 persons; that when he along with other staff came out from the company premises accused Sher Singh and accused Ashu caught him and dragged him towards a truck which was standing nearby; that the accused persons put off his t-shirt and also thrown his bag; that accused Ashu hold him from front and accused Sher Singh stabbed him multiple times with knife on his right side chest (back) and other parts of body; that thereafter both the accused along with their associates fled away from the spot; that thereafter supervisor Vipin sat him on the two wheeler of one of his friend and took him to one clinic however the said clinic refused to give treatment him; that thereafter supervisor Vipin called to police at 100 number; that he was taken to ESI hospital by the police; that

at that time Harish Singh Bisht, Vipin and Sachin were also accompanied him to hospital; that thereafter he was shifted to Safdarjung Hospital; that police official took his signature on blank paper; that he was discharged from Safdarjung hospital after three to four days; that at this stage witness is shown his complaint/ statement dated 18.04.2013 after going through the witness has identified his signature at point A which is already exhibited as Ex. PW1/A; that police has only taken his signatures (point A) and not recorded his statement". He was cross examined by the Ld. Defence counsel.

11.1 Sh. Vipin Kumar was examined as PW-2 and he has deposed that "he has been residing at the above said address since his birth; that he is working as private employee at Faridabad; that earlier he was working in ERD, Leading Point Technology Company at Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 15:53:54 FIR NO.: 204/2013, PS. O.I.A. +0530 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 12 of 31 Okhla; that he was appointed as supervisor in Service Department of the above said company; that accused Ashu, Sher Singh and complainant Sunil were working in above said company under his supervision; that he does not remember the date of incident however on that day verbal arguments took place between complainant Sunil on the one side and accused Sher Singh and Ashu on the other side and the above said incident took place inside the premises of ERD, Leading Point Technology Company; that thereafter he took all the above said three persons to Senior Officers at ground floor of the above said premises however incident took place at third floor of the same premises; that he does not know what has happened thereafter; that thereafter at about 05:30 to 06:00 PM when his office hours closed and he reached at the gate of the ERD, Leading Point Technology Company he saw that many persons were gathered there and accused Ashu, Sher Singh and complainant Sunil were fighting with each other; that when he went close to them he saw injury marks on the back and stomach of the complainant Sunil; that thereafter the accused persons as well as the other persons who collected at the spot left away from there; that he took the injured Sunil to ESI Hospital however Sunil was referred to Safdarjung Hospital; that thereafter he took him to Safdarjung hospital; that he does not know how police came to know about the incident; that somebody from the public must have called the police; that police met him at Safdarjung hospital and inquired him about the incident; that he narrated the whole incident to police; that he does not want to say anything more ". He was cross Digitally examined by the Ld. Defence counsel. signed by GEETANJALI GEETANJALI Date:
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> 2025.12.26 15:54:00 +0530 FIR NO.: 204/2013, PS. O.I.A. S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 13 of 31 11.2 In order to prove the offence under section 307 IPC it is essential to prove that there was intention or knowledge coupled with some overt act in execution of such intention / knowledge. It has been held by the Hon'ble Supreme Court in the matter of State of Madhya Pradesh v. Kedar Yadav, 2009 (17) SCC 280, that "for conviction under section 307 IPC it is sufficient if there

is an intention or knowledge coupled with some overt act in execution of such intention/ knowledge. It is not necessary that bodily injury capable of causing death should have been inflicted. If the act, irrespective of its result is done with the intention or knowledge and under the circumstances mentioned in the sections, the same may result conviction under section 307 IPC and the accused cannot be acquitted merely because the injuries inflicted on the victim were in the nature of a simple hurt".

12. In the matter of Satish Kumar v. State (NCT of Delhi), 2013 (5) AD (Delhi) 674 : 2013 (3) JCC 1749, the Hon'ble Delhi High Court observed as under:-

"8. The issue now arises is whether an offence under Section 307 IPC is made out or not. The essential ingredient of Section 307 IPC is the mensrea. Mensrea can be inferred from the kind of weapon used, the place of injury, motive etc. To bring home a charge under Section 307 IPC the onus lies on the prosecution to prove that the accused caused an act with the intention or knowledge and under such circumstances that if by that act death was caused he would be guilty of murder. In the present case on a quarrel ensuing, the Appellant caused a knife blow on the injured by a kitchen knife. The injury was caused on the back side and only one blow was given. In view of the GEETANJALI Date:

FIR NO.: 204/2013, PS. O.I.A. S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 14 of 31 weapon of offence and injury not being on the vital part it cannot be said that the Appellant had intention to cause murder of the injured. Further the Appellant certainly had intention to cause injury which was opined to be simple sharp in nature. Thus the Appellant is convicted for offence punishable under Section 324 IPC instead of Section 307 IPC and the conviction under Section 307 IPC is set aside".

13. Viewed in this light, the testimonies of the witnesses are now to be examined to consider whether the conviction can be sustained under section 307 IPC on the basis of the evidence led in the present matter. All the ingredients of section 307 IPC ought to be fulfilled before the conviction can be sustained under section 307 IPC. The injuries sustained, the manner of assault and the weapon used are all relevant factors. The foremost ingredients of section 307 IPC is the intention or knowledge which must precede the act attributed to the accused. In order to determine the intention of the assailant various factors and circumstances are to be considered such as the nature of injury caused, severity of the blow or its persistence, sufficiency of time and opportunity of causing more injury, intervention by others, nature of weapon and the seat of injuries. The intention/ knowledge has to be gathered from the surroundings circumstances and not necessarily from the results that follow, which may result in simple or grievous injury. The onus lies on the prosecution that the accused has caused an act with intention/knowledge and under such circumstances that if by that act death was caused, he would be guilty of murder.

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13.1 Reverting to the testimonies of the witnesses, the allegations against the accused persons are that they in furtherance of their common intention stabbed Sh. Sunil Kumar with knife due to which he suffered grievous injuries. Sh. Sunil Kumar i.e. PW-1 has clearly deposed that he was stabbed by accused Sher Singh with the knife on his right side chest (back) and other parts of body and accused Ashu assisted him in the said assault by holding him. In the words of PW-1, "on that day at about 07:00 PM accused Sher Singh and Ashu reached outside the company premises along with 20 persons; that when he along with other staff came out from the company premises accused Sher Singh and accused Ashu caught him and dragged him towards a truck which was standing nearby; that the accused persons put off his t-shirt and also thrown his bag; that accused Ashu hold him from front and accused Sher Singh stabbed him multiple times with knife on his right side chest (back) and other parts of body" . The fact regarding commission of offence got reaffirmed during cross examination wherein the PW-1 has re-stated that incident had happened at abut 7.00 p.m. No specific suggestion was given to the witness that accused Sher Singh did not stab him with knife on his right side chest (back) and other parts of body or that accused Ashu did not assist him in the said assault.

13.2 PW-1 has also deposed about the background of the present incident. It is an admitted fact that PW-1, PW-2 and both the accused persons were working in the same company i.e. ERD Technologies at the time of incident since in response to question no. 1 put while recording their statements u/s. 313 Cr.PC they have responded as Digitally signed by GEETANJALI GEETANJALI Date:

2025.12.26 FIR NO.: 204/2013, PS. O.I.A. 15:54:22 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 16 of 31 +0530 follows:-

"Q.l It is in evidence against you in the testimony of PW-1 Sh. Sunil Kumar that he was working in packing department at ERD Technologies Company at A-1/1, Okhla Phase I. New Delhi as a helper, that on 17.04.2013 co-accused Sher Singh who was working in the battery department in the above said Company, went to washroom and started arguing with Anjani working in charger department. What do you have to say? Ans. It is correct that on 17.04.2013 I along with Sher Singh and Sh Anjani were working together in ERD Technologies but it is incorrect that I had any argument with Anjani on that day.

13.3 Reverting to the background of the present incident, PW-1 has deposed that accused Sher Singh was harassing the other employee namely Anjani and when he questioned accused Sher Singh about his said conduct, the present assault happened. PW-1 Shri Sunil has narrated the whole series leading to the present incident. He has

deposed that "he was working in ERD Technologies Company (packing department) at A-1/1, Okhla Phase I, New Delhi as a helper; that on 17.04.2013 accused Sher Singh who was working in the above said company but other department i.e battery department with him went to washroom and he started verbal arguments with Anjani in another department; that however the same was took place in the premises of the above said ERD Technologies Company; that Anjani was working in other department i.e. Charger Department in the same company; that thereafter at about 04:45 PM accused Sher Singh Digitally signed by GEETANJALI GEETANJALI Date:

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reached their department i.e. packing department by abusing Anjani; that thereafter he asked the accused Sher Singh as to why he was abusing Anjani however he did not reply; that thereafter he along with other workers went for tea to the canteen which is outside the department of packing as it was tea break time; that at the canteen accused Sher Singh tried to manhandle with Anjani however they intervene between them and matter resolved there. He has further deposed that "on that day at about 07:00 PM accused Sher Singh and Ashu reached outside the company premises along with 20 persons; that when he along with other staff came out from the company premises accused Sher Singh and accused Ashu caught him and dragged him towards a truck which was standing nearby; that the accused persons put off his t-shirt and also thrown his bag; that accused Ashu hold him from front and accused Sher Singh stabbed him multiple times with knife on his right side chest (back) and other parts of body". He was cross-examined at length by the Ld. Defence Counsel but he failed to impeach his credibility. The fact got re- confirmed by the Ld. Defence Counsel in his cross-examination that "it is correct that accused Sher Singh was quarreling with Anjani and Harish Singh Bisht; that Harish Singh was closed to him and he was tried to save Harish Singh Bhisht that is why accused persons had quarreled with me; that the incident which was happened with me was committed on 18.04.2013." Further no specific suggestion was given to the witness that accused Sher Singh was not harassing the other employee Ms. Anjani or that PW-1 Shri Sunil Kumar did not come in her aid. This part of his testimony goes unchallenged, unrebutted and Digitally signed by GEETANJALI GEETANJALI Date:

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unshattered as the same has not been assailed by way of cross examination. It is well settled principle of law that if any part of testimony is not challenged in the cross examination that is deemed to be admitted.

13.4 PW-1 Shri Sunil has further deposed that both the accused fled away from the spot and he was taken to the hospital by his supervisor Vipin. To quote from his testimony " thereafter both the accused along with their associates fled away from the spot; that thereafter supervisor Vipin sat him on the two wheeler of one of his friend and took him to one clinic however the said clinic refused to give treatment him; that thereafter supervisor Vipin called to police at 100 number; that he was taken to ESI hospital by the police". He has reiterated the fact in his cross examination that the call was made by Vipin to the police official after happening of the incident. He has further reconfirmed in his cross examination that " In ESI Hospital, he was taken by the police officials for treatment injuries which was caused to him due to present incident; that in the incident, he sustained injuries on the right side back of his body and the blood was oozing from there;; that the number of injuries caused to him in the said incident and blood was oozing from several parts of his body; that he remained in the ESI Hospital for about 5 to 10 minutes and thereafter, he was referred to Safdarjung Hospital for further treatment; that police had taken him to Safdarjung Hospital from ESI Hospital." None of the said facts were challenged during cross Digitally examination and they went unrebutted. signed by GEETANJALI GEETANJALI Date:

2025.12.26 15:54:44 +0530 FIR NO.: 204/2013, PS. O.I.A. S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 19 of 31 13.5 The testimony of PW-1 Shri Sunil is corroborated by the testimony of PW-2 Shri Vipin Kumar regarding the fact that some argument took place between PW-1 Shri Sunil from one side and both the accused on the other side. In his words "he does not remember the date of incident however on that day verbal arguments took place between complainant Sunil on the one side and accused Sher Singh and Ashu on the other side and the above said incident took place inside the premises of ERD, Leading Point Techonology Company."

This fact was also not assailed during the cross examination and same went unrebutted.

13.6 PW-2 Shri Vipin is further corroborating the testimony of complainant PW-1 Shri Sunil regarding the present assault. PW-2 Shri Vipin has deposed that he saw injury marks on the back and stomach of complainant i.e. PW-1 Shri Sunil. In his words "thereafter at about 05:30 to 06:00 PM when his office hours closed and he reached at the gate of the ERD, Leading Point Technology Company he saw that many persons were gathered there and accused Ashu, Sher Singh and complainant Sunil were fighting with each other; that when he went close to them he saw injury marks on the back and stomach of the complainant Sunil". Though PW-2 Shri Vipin Kumar did not see the incident but the fact that he saw accused Sher Singh, Ashu and complainant fighting with each other and he also saw injury marks on the back and stomach of complainant Sunil are relevant fact in reaching to the conclusion that accused Sher Singh and Ashu Singh indeed have some connect with the injuries suffered by the Digitally complainant i.e. PW-1. signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 15:54:51 +0530 FIR NO.: 204/2013, PS. O.I.A. S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 20 of 31 13.7 Secondly, both the witnesses i.e. PW-1 Shri Sunil as well as PW-2 Shri Vipin have unanimously deposed that both of them saw both the accused Ashu Singh and Sher Singh fleeing from the spot after the incident which is reflecting upon their conduct and that conduct is not linked to the fear attached with police officials since they fled away from the spot even before arrival of police officials at the spot. Such conduct is justifiably strengthening the chain of circumstances against the accused persons alongside other incriminating material against them. This piece of evidence is relevant in deciding the present case per section 8 of the Indian Evidence Act.

The relevant portion of section 8 of the Indian Evidence Act is reproduced below:

> 13.8 Section 8: Motive, preparation and previous or subsequent conduct --
>
> "……..
>
> Explanation 2.--When the conduct of any person is relevant, any statement made to him or in his presence and hearing, which affects such conduct, is relevant."

13.9 It has been held by the Hon ble the Supreme Court in case titled as Matru v. State of U.P. 1971 (2) SCC 75, as under:

> "19. ... Even an innocent man may feel panicky and try to evade arrest when wrongly suspected of a grave crime such is the instinct of self-preservation. The act of absconding is no doubt relevant piece of evidence to be considered along with other evidence but its value would always depend on the circumstances of each case. Normally the courts are disinclined to attach much Digitally signed by GEETANJALI GEETANJALI Date:
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> 2025.12.26 FIR NO.: 204/2013, PS. O.I.A. 15:54:59 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 21 of 31+0530 importance to the act of absconding, treating it as a very small item in the evidence for sustaining conviction. It can scarcely be held as a determining link in completing the chain of circumstantial evidence which must admit of no other reasonable hypothesis than that of the guilt of the accused...."

13.10 Thirdly, during the cross examination PW-2 Shri Vipin has also stated that he along with his friend Inderjeet took him to ESI Hospital and before that they took him to some private clinic at Okhla which is going in consonance with the testimony of PW-1 Shri Sunil who has also deposed on similar lines.

14. During course of arguments it is submitted by Ld. defence counsel that no other public witness was examined by the IO despite the fact that PW-1 has clearly deposed that several other public

persons were also present at the time of incident. In the given facts and circumstances the testimony of the complainant/injured i.e. PW-1 is well supported by the testimony of PW-2 Sh. Vipin and the fact that both the accused persons assaulted the complainant has been well established. It has been well established that the attack was with the knife and it has also been established that the said attack was intentional and indiscriminate as apparent from the testimonies of the witnesses. PW-1 has specifically deposed that accused Sher Singh stabbed him with knife on the vital parts of his body while accused Ashu Singh hold him from front. Secondly, as per the MLC, the victim/complainant i.e. PW-1 suffered injuries on his vital part i.e. his chest and from the nature of the injuries, it can very well said that they were caused with avowed object or knowledge to cause death. Going Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 FIR NO.: 204/2013, PS. O.I.A. 15:55:06 +0530 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 22 of 31 by the overall facts and circumstances and the nature of injuries suffered particularly their respective situs, intention to cause death or likelihood of death being result of the injuries intended to be caused, can be easily inferred against both the accused persons. It has been heldby the Hon'ble Apex Court in case titled as Sayeed v. State of M.P., (2010) 10 SCC 259 that:-
>
> "Injured witness
>
> 28. The question of the weight to be attached to the evidence of a witness that was himself injured in the course of the occurrence has been extensively discussed by this Court. Where a witness to the occurrence has himself been injured in the incident, the testimony of such a witness is generally considered to be very reliable, as he is a witness that comes with a builtin guarantee of his presence at the scene of the crime and is unlikely to spare his actual assailant(s) in order to falsely implicate someone. "Convincing evidence is required to discredit an injured witness."

14.1 In Abdul Sayeed v. State of M.P., (supra), the Hon'ble Supreme Court also reiterated the special evidentiary status accorded to the testimony of an injured accused and relying on its earlier judgments and noted the decision in Shivalingappa Kallayanappa v. State of Karnataka [1994 Supp (3) SCC 235: 1994 SCC (Cri) 1694] wherein it was held that the deposition of the injured witness should be relied upon unless there are strong grounds for rejection of his evidence on the basis of major contradictions and discrepancies, for the reason that his presence on the scene stands established in case it is proved that he suffered the injury during the said incident . The Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 FIR NO.: 204/2013, PS. O.I.A. 15:55:12 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 23 of 31 +0530 Hon'ble Supreme Court further observed as follows:
>
> "30. The law on the point can be summarised to the effect that the testimony of the injured witness is accorded a special status in law. This is as a consequence of the fact that the injury to the witness is an inbuilt guarantee of his presence at the scene of

> the crime and because the witness will not want to let his actual assailant go unpunished merely to falsely implicate a third party for the commission of the offence. Thus, the deposition of the injured witness should be relied upon unless there are strong grounds for rejection of his evidence on the basis of major contradictions and discrepancies therein."

14.2 In view of the same the argument so raised from the side of defence is found to be of no consequence.

Medical Evidence

15. The fact that PW-1 suffered injuries on his right side chest (back) and other parts of body has been proved by PW-3 Dr. Nasim Alam who was the Medical Officer at ESIC Hospital where complainant was initially taken by PW-2 Shri Vipin and other persons after the assault. PW-3 Dr. Nasim Alam has deposed that on 18.04.2013 the patient namely Sunil came with the alleged history of stab injury. He prepared his MLC Ex.PW3/A and opined the nature of injuries as grievous in nature. Though in response to question, he admitted that opinion on the nature of injuries was given by DOD surgeon but no question mark was raised on the said opinion. Further the said opinion was proved by PW-8 Dr. Bhaskar Saxena, Jr. Resident-III, General Surgery who has appeared on behalf of that doctor namely Dr. Jagdish Mutreja who gave the opinion on the MLC GEETANJALI Date:

> FIR NO.: 204/2013, PS. O.I.A. S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 24 of 31 of the complainant regarding the nature of injuries suffered by him since he had left the hospital. He has deposed that "he has worked as Medical Officer at ESIC hospital, Okhla, New Delhi with effect from 12.09.2009 to 15.11.2022; that thereafter he had obtained study leave for pursuing post graduation course at ESIC Model hospital, Jaipur, Rajasthan; that he can identify the signature and handwriting of Dr. Jagdish Mutreja the then Sr. Resident of ESIC hospital, Okhla, New Delhi as he had worked with him and he has seen his signature and handwriting during the course of his duty; that at this stage MLC of injured Ex. PW9/A is shown to the witness; that after seeing the same witness has correctly identified the signature and handwriting of Dr. Jagdish Mutreja at point A and handwriting encircled as C in the MLC Ex. PW9/A; that on perusal of the injury of the injured Sunil mentioned in his MLC it can be said that injured Sunil has sustained multiple stab injuries on his right side chest and as per his opinion and expertise the injuries are dangerous in nature; that as per the MLC the injured Sunil was referred to the Safdarjung hospital for further treatment and analysis". He was cross examined by the Ld. defence counsel and a suggestion was given to him that he was falsely identifying signatures of Dr. Jagdish Mutreja despite the fact that he had not worked with him. However no positive evidence has come on record to prove that Dr. Bhaskar Saxena have not worked in the ESI Hospital during the period when Dr. Jagdish Mutreja was also working there.

15.1 Further the injuries suffered by PW-1 Shri Sunil are

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described in the MLC as below:-

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(i) One oblique stab wound right side posterior chest wall over scapular region measuring 6X2.5 Cms. Stab is muscle deep.

(ii) Another stab wound 2X0.5 Cms. over first one, one inch above previous one.

(iii) Stab wound 1X0.5 Cms. over right side of chest wall.

(iv) Two small puncture wounds over anterior chest wall.

(v) Surgical emphysema (mild) over right side chest wall.

15.2 The description of the injuries given in the MLC are stab wound which is defined as a penetrating injury from a sharp, pointed object (like a knife, ice pick, or screwdriver) thurst into the body, characterized by a depth greater than its surface width, causing damage to skin and underlying tissue / organs, leading to potential severe bleeding, infection or organ failure and the said nature of injury is going in consonance with the weapon of offence in the present case which is the knife.

16. Coming to the joint liability of both the accused in the commission of the offence, the underlying basic assumption or foundation in criminal law is the principle of personal culpability. A person is criminally responsible for act or transactions in which he is personally engaged or in some other way had participated. Section 34 of the Penal Code, 1860 recognizes the principle of vicarious liability in criminal jurisprudence. It makes a person liable for action of an offence not committed by him but by another person with whom he shared the common intention. To attract applicability of Section 34 IPC, the prosecution is under an obligation to establish that there existed a common intention before a person can be vicariously Digitally signed by GEETANJALI GEETANJALI Date:

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convicted for the criminal act of another. The ultimate act should be done in furtherance of common intention. Common intention requires a pre-arranged plan, which can be even formed at the spur of the moment or simultaneously just before or even during the attack. The use of words "in furtherance" suggests that Section 34 is applicable also where the act actually done is not exactly the act jointly intended by the conspirators to be done, otherwise, the words would not be needed at all.

The common intention can be to do one act and another act can be done in furtherance of the common intention. The aforesaid quotation emphasizes that it is essential that each co-perpetrator should have necessary intent to participate or otherwise have requisite awareness or knowledge that the offence is likely to be committed in view of the common design. It also follows that in some cases merely accompanying the principal accused may not establish common intention. A co-perpetrator, who shares a common intention, will be liable only to the extent that he intends or could or should have visualized the possibility or probability of the final act. If the final outcome or offence committed is distinctly remote and unconnected with the common intention, he would not be liable. Reliance placed on Judgment titled 'Krishnamurthi @ Gonodu Vs. State of Karnataka', passed by Hon'ble Supreme Court of India on 16.02.2022. 16.1 Applying the said principles relating to applicability of Section 34 IPC to the facts of present case, PW-1 has specifically deposed that both the accused were present outside the Company premises on the date and time of incident and the moment he came out of the Company, both the accused dragged him towards a stationary Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.12.26 FIR NO.: 204/2013, PS. O.I.A. 15:55:40 S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 27 of 31 +0530 truck and accused Ashu Singh hold him from front while accused Sher Singh stabbed him multiple times with knife on his chest and other parts of body. In his words "on that day at about 07:00 PM accused Sher Singh and Ashu reached outside the company premises along with 20 persons; that when he along with other staff came out from the company premises accused Sher Singh and accused Ashu caught him and dragged him towards a truck which was stand nearby; that the accused persons put off his t-shirt and also thrown his bag; that accused Ashu hold him from front and accused Sher Singh stabbed him multiple times with knife on his right side chest (back) and other parts of body." The said facts were not challenged during the cross examination and same went unrebutted. Further PW-2 Shri Vipin has corroborated the fact that both the accused were present at the spot and he also saw injury marks on back and stomach of the complainant. All the above said is sufficient enough to come to the conclusion that both of the accused were sharing the common intention of inflicting that kind of harm upon the complainant that if by that act death was caused, they may be guilty of murder.

17. From the aforesaid testimonies, it is quite clear that injuries were inflicted upon the victim i.e. PW-1 under a pre-meditated plan and the fact that accused Sher Singh came armed with a knife and gave knife blows on his right side chest (back) and other parts of body and he was assisted by accused Ashu Singh in the said act also reflects their common intention to kill him and the offending weapon is dangerous in nature. In view of the aforesaid facts and circumstances, it can be inferred that the injuries were inflicted upon the victim i.e. Digitally signed by GEETANJALI GEETANJALI Date:

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PW-1 with the sole intention and purpose to cause his death.

CIRCUMSTANTIAL EVIDENCE / RECOVERIES

18. The investigating machinery was set into motion in the present case on the receipt of DD no. 22A upon which IO/SI Jagbir Singh along with Ct. Jitender reached at the spot. PW-4 IO/SI Jagbir has deposed that "on 18.04.2013 he was posted as ASI at PS OIA; that on that day after receiving DD no. 22A at about 07:25 PM he along with Ct. Satender reached at the spot i.e. company no. A/1, □□□; that after reaching the spot they came to know injured has already been shifted to ESIC Hospital by PCR van; that thereafter they reached at ESIC hospital and collected the MLC no. 52/13 of injured Sunil; that as per MLC the injured was fit for statement; that thereafter he recorded the statement of injured Sunil which is exhibited as Ex. PW4/A; that thereafter he prepared rukka which is exhibited as Ex.PW4/B and handed over the same to Ct. Satender for registration of FIR; that thereafter he prepared the site plan of the spot which is exhibited as Ex. PW4/C; that thereafter he recorded the statement of witnesses; that on 19.04.2013 accused persons namely Ashu and Sher Singh were apprehended and were arrested thereafter; that arrest memo of accused Ashu is Ex. PW4/D and his personal search was also conducted which is Ex. PW4/E; that he recorded his disclosure statement which is Ex. PW4/F; that arrest memo of accused Sher Singh is Ex. PW4/G and his personal search was also conducted which is Ex. PW4/H; that he recorded his disclosure statement which is Ex. PW4/I; that pointing out memo at the instance of both accused persons were prepared which is Ex. PW4/J;

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that thereafter accused persons were released on police bail; that thereafter he collected the result of the MLC and based on the MLC he added Section 326 IPC; that thereafter he got transferred and case file was handed over to MHC(M)". He was cross examined by the Ld. defence counsel but he failed to erode his credibility during the cross examination. Ld. Defence counsel failed to show any gross lapse in the investigation which may cast doubt upon the story of Prosecution.

18.1 In these circumstances considering the weapon of offence used i.e. knife which is a deadly weapon, nature of injuries and the fact that grievous injuries were caused on the chest of the victim i.e. PW-1 Sh. Sunil Kumar, revealed the intention of both the accused that injuries were caused with such intention or knowledge and under the circumstances that if by that act death of PW-1 Sh. Sunil Kumar was caused, they would be guilty of murder and thereby satisfied the requirements of section 307 IPC.

DEFENCE OF THE ACCUSED

19. In their statement u/s. 313 Cr.PC, both the accused denied the allegations against them and stated that they are innocent and were falsely implicated in the present case by the complainant in connivance with the IO; that they have no dispute with the complainant and do not know how come

the present FIR was registered against them. However they preferred not to lead any evidence in their defence. Secondly, they failed to give any concrete reason what was the cause behind the false implication or what was the cause of enmity between them. Digitally signed by GEETANJALI GEETANJALI Date:

2025.12.26 15:56:01 +0530 FIR NO.: 204/2013, PS. O.I.A. S.C. NO.: 210/2020 State Vs. Ashu Singh & Anr. Page no. 30 of 31 19.1 During course of arguments it is submitted by the Ld. defence counsel that no CCTV footage was placed on record by the Prosecution to substantiate the factum of quarrel between the accused persons and the complainant. This arguments has no force since nothing has come on record that CCTV cameras were found to be installed at the place of incident.

19.2 It was further argued by the Ld. Defence counsel that as per MLC injuries suffered by the complainant i.e. PW-1 Shri Sunil were old injuries which also cast doubt on the Prosecution story. However from perusal of the MLC of the complainant, no such injury was found to be observed in the description of the injuries suffered by the complainant. Hence this argument is also found to be without any substance.

20. In view of the aforesaid discussion I conclude that the accused Ashu Singh caught hold of complainant/injured Sunil Kumar and accused Sher Singh stabbed him with knife and caused multiple injuries on his right side chest and other body parts with such intention/ knowledge and under the circumstances that if by act death of PW-1 was caused, they would be guilty of murder. In view of the same, accused Ashu Singh and Sher Singh are convicted U/s. 307/34 IPC. Digitally signed by Typed to the direct dictation and GEETANJALI GEETANJALI Date:

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announced in the open court                                    2025.12.26
on this 26th day of December, 2025                             15:56:11
                                                         (Geetanjali)+0530
                                                 Addl. Session Judge (FTC)-03
                                                South East District,Saket Courts
                                                    New Delhi/26.12.2025


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